

Amendment No. 3 to HB2359

Freeman
Signature of Sponsor

AMEND Senate Bill No. 2293*

House Bill No. 2359

by deleting Section 4 and substituting:

SECTION 4. Tennessee Code Annotated, Section 57-7-106(b)(3)(A), is amended by deleting the subdivision and substituting:

(A)

(i) An applicant for a license as a retailer with a proposed retail location that is within one thousand feet (1,000') of a private school, public school, or charter school that serves any grade from kindergarten through grade twelve (K-12) shall not sell HDCPs at such location unless the applicant provides the commission with documentation that establishes that HDCPs were being offered for sale at retail at such location on December 31, 2023.

(ii) Notwithstanding this chapter, a licensed retailer with a retail location that is within one thousand feet (1,000') of a private school, public school, or charter school that serves any grade from kindergarten through grade twelve (K-12) shall not sell HDCP vapor products at such location.

SECTION 5. Tennessee Code Annotated, Title 67, Chapter 4, Part 10, is amended by adding the following as a new section:

Notwithstanding this chapter, a vapor product retail dealer or retail vapor product store with a retail location that is within one thousand feet (1,000') of a private school, public school, or charter school that serves any grade from kindergarten through grade twelve (K-12) shall not sell vapor products at such location.

SECTION 6.

(a) Section 4 and Section 5 of this act take effect July 1, 2027, the public welfare requiring it, and applies to conduct occurring on or after that date.

(b) For all other purposes, this act takes effect upon becoming a law, the public welfare requiring it.